

Guide 2 — Visual Evidence and Policing

Body-worn cameras, citizen footage, and crime scene imagery — a guide for law enforcement *By Tara Abrahams and Scott Jacques · Supported by CrimRxiv Consortium (<https://www.crimrxiv.com/>) · CC BY 4.0*

Why this guide exists

Visual evidence is now central to nearly every investigation, internal review, and public-facing account of a critical incident. This guide summarizes what the peer-reviewed research and current policy say about producing, preserving, and disclosing that evidence in ways that hold up in court, withstand public scrutiny, and protect the people captured on camera.

It is not legal advice and does not replace your agency's policy or your jurisdiction's law.

1. Body-worn cameras: what the evidence actually says

A decade of BWC research now exists, and the picture is more nuanced than the early "game-changer" claims:

- **Policy matters more than presence.** White and colleagues (2025) (<https://www.emerald.com/pijpsm/article/48/5/1047/1269141/>) studied 160 federally funded agencies and found 81% changed their BWC policies at least once, with 957 unique changes. Policy is a living document; treat it that way.
- **Cameras alone don't reduce racial disparity—oversight does.** Ali and Wright (2024) (<https://journals.sagepub.com/doi/10.1177/02750740241229998>) found BWCs reduced racial disparity in disorderly conduct arrests *only* when paired with a citizen oversight agency.

- **The same footage is read differently by different viewers.** Cross and colleagues (2025) (<https://doi.apa.org/doi/10.1037/lhb0000642>) showed identical BWC video produces meaningfully different procedural-justice judgments by viewer race and ideology, especially when the recorded conduct is contested.
- **Officers' own memories shift to match the footage.** Adams, MacDougall and Paterson (2020) (<https://pmc.ncbi.nlm.nih.gov/articles/PMC7743977/>) documented "camera conformity"—officers reviewing footage before writing statements excluded true details that the camera missed. This has direct implications for review-before-report policy.
- **Footage strengthens some prosecutions and complicates others.** Iliadis and Harris (2024) (<https://www.aic.gov.au/crg/reports/crg-3520-21>) found BWC footage in domestic and family violence cases can validate victim-survivor experience, but can also be exploited by perpetrators and contribute to misidentification when officers arrive mid-conflict.

Operational implications: - Treat BWC footage as one source among many, not as ground truth. - Be explicit in policy about whether and when officers may review their footage before writing statements—and document the rationale. - Pair BWC programs with independent review.

2. Activation, deactivation, and the gaps

Most agency policies require activation before any enforcement contact. Most also allow deactivation in specific circumstances (sensitive interviews, hospital settings, victim requests). The high-risk moments are the gaps:

- **Pre-activation.** If a contact escalates faster than the camera can be turned on, document why in writing immediately.
- **Mid-incident deactivation.** Every deactivation should have a stated reason logged in the same shift.
- **End-of-incident.** Continue recording through the post-action sequence (rendering aid, securing the scene, supervisor arrival). Many disputes turn on what happened *after* the use of force.

The BJA's FY25 BWC Policy and Implementation Program (<https://bja.ojp.gov/funding/opportunities/o-bja-2025-172461>) materials remain the most comprehensive federal reference for U.S. agencies building or revising activation policy.

3. Storage, retention, and chain of custody

Rules vary by jurisdiction. Common baselines: - **Minimum retention.** Illinois requires 90-day retention (<https://www.bettergov.org/2025/12/17/six-bills-sought-to-reduce-public-access-to-body-cam-footage/>) of all BWC video, with longer retention triggered by use of force, complaints, arrest, detention, death or great bodily harm, or use of a firearm. - **Tamper-resistance.** Storage must prevent alteration or deletion within the retention window, with auditable access logs. - **Categorization at upload.** Officers should tag footage at upload (traffic stop, use of force, victim interview, etc.) to support search, redaction, and disclosure.

For digital evidence beyond BWC—seized phones, cloud accounts, surveillance feeds—follow SWGDE (Scientific Working Group on Digital Evidence) standards (<https://www.swgde.org/documents/>) for acquisition and chain of custody.

4. Citizen recording of officers

The First, Third, Fifth, Seventh, Ninth, and Eleventh Circuits (<https://www.justia.com/criminal/procedure/right-to-record-police-officers/>) have all recognized a First Amendment right to record police in public, subject to reasonable time, place, and manner restrictions. The Columbia Human Rights Law Review's 2025 analysis (Rose, 2025 (https://hrlr.law.columbia.edu/files/2025/09/Rose_Codifying-the-Right-to-Record-Police_55.3.pdf)) describes the right as widely recognized but unevenly protected.

For officers in the field: - A person filming you from a place they have a right to be is, by default, exercising a protected right. - The recording itself is not reasonable suspicion of a crime. - You may set reasonable, narrowly tailored limits if recording is *actually* interfering with an investigation, an arrest, or scene safety—but state the specific interference, not the recording. - An order to stop recording, or a seizure of a recording device or its memory, will be scrutinized closely.

The Hall Booth Smith analysis of "First Amendment auditors" (<https://hallboothsmith.com/citizen-video-audits-know-their-rights-and-yours/>) is a useful summary of the case law for line-officer training.

5. Releasing footage to the public and the press

There is a clear policy trend toward faster, more structured release of footage from critical incidents: - The NYPD's March 2026 policy (<https://www.police1.com/law-enforcement-policies/nypd-tightens-bodycam-policy-to-30-day-release-of-most-critical-incident-videos>) requires release within 30 days for officer-involved shootings causing injury and use-of-force incidents resulting in serious injury or death. - Federal practice is uneven. The DEA terminated its BWC program in April 2025 (<https://www.fd.org/news/dea-quietly-ditches-body-cam-requirement>); ICE retained Biden-era policy language but with reduced funding (R Street, 2026 (<https://www.rstreet.org/commentary/making-federal-body-worn-cameras-work-in-practice/>)). - Several state legislatures have considered narrowing public access to BWC footage. The Better Government Association's 2025 review (<https://www.bettergov.org/2025/12/17/six-bills-sought-to-reduce-public-access-to-body-cam-footage/>) tracks Illinois bills as a representative case.

Release best practices: - **Redact, don't withhold, where possible.** Blur faces of uninvolved bystanders, minors, and victims who have not consented to identification. - **Release the full sequence**, not just the seconds of force. Selective release damages credibility more than the underlying incident often would. - **Provide context with the footage:** what the officers knew before they arrived, what the camera does and does not capture, what is still under investigation. - **Notify families before public release** of footage involving death or serious injury.

6. Crime-scene imagery

Crime-scene photography is foundational evidence and should follow established forensic protocols (full documentation before alteration, scale and orientation

references, consistent log of every image taken). For this guide, the focus is on the *downstream* use of those images:

- **Limit access on a need-to-know basis.** Crime-scene photographs of victims should not appear in training materials, presentations, or social media without explicit authorization and victim/family consent where the victim is identifiable.
 - **Avoid "trophy" sharing.** Internal sharing of disturbing imagery without investigative purpose has driven multiple high-profile civil cases.
 - **Plan for autopsy and medical imagery.** These typically require additional protections under state law and HIPAA-equivalent rules.
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7. Interpreting footage in court and in review

The research is consistent on one point: **footage is interpreted, not simply seen.** Investigators and reviewers should: - Watch the full clip before reading any narrative summary. - Watch it more than once, including without sound. - Document specific frames or timestamps that support each finding. - Flag where the footage is genuinely ambiguous and resist resolving ambiguity with assumption.

Park, Feigenson and Cheng (2024) (<https://onlinelibrary.wiley.com/doi/10.1002/acp.70007>) showed that even brief verbal framing changes what people report seeing. Build review processes that minimize that framing.

8. Field checklist

- [] Camera activated before contact (and documented if not)
- [] Verbal notification of recording where policy or law requires
- [] Recording continues through post-action sequence
- [] Deactivations logged with stated reason
- [] Footage uploaded and categorized at end of shift
- [] Retention category set correctly for any use of force, complaint, or significant event
- [] Bystander recording acknowledged and not interfered with absent specific articulable interference

Further reading

- BJA — National Body-Worn Camera Toolkit (<https://bja.ojp.gov/program/body-worn-cameras>)
- IACP — Body-Worn Cameras model policy (<https://www.theiacp.org/resources/policy-center-resource/body-worn-cameras>)
- SWGDE standards (<https://www.swgde.org/documents/>)
- Police Executive Research Forum — BWC publications (<https://www.policeforum.org/>)
- CrimRxiv — open-access criminology (<https://www.crimrxiv.com/>)

Uncertainty flags: BWC effects on use of force, citizen complaints, and arrests remain mixed across studies. Findings about racial disparity and oversight are based on a limited but growing body of work. Always cross-check against your jurisdiction's current law and your agency's policy.